



CHAPTER 22.

An Act to amend Part VI of the Local Government Act, 1929; and to repeal section forty-five of the Unemployment Assistance Act, 1934, and the proviso to paragraph (c) of subsection (2) of section nine of the Rating and Valuation Act, 1925. [25th March 1937.]

A.D. 1937.

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) The amount of the General Exchequer Contribution to be paid under section eighty-six of the Local Government Act, 1929 (hereinafter referred to as "the principal Act") in respect of each year in the third fixed grant period shall be the sum of forty-six million, one hundred and seventy-two thousand pounds, and in respect of each year of every following fixed grant period such amount as Parliament may hereafter determine with respect to the fixed grant period, so, however, that the General Exchequer Contribution for the fourth or any subsequent fixed grant period, exclusive of any increase made therein in pursuance of section four of the Midwives Act, 1936, shall be of an amount bearing to the total amount of rate and grant borne expenditure in the penultimate year of the preceding fixed grant period a proportion not less than twenty-two and one-half per cent.

Amount of
General
Exchequer
Contribu-
tions in
respect of
third and
subsequent
fixed grant
periods.
19 & 20
Geo. 5. c. 17.

26 Geo. 5. &
1 Edw. 8.
c. 40.

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(2) In this section—

(a) the expression “rate and grant borne expenditure” means the local expenditure which fell to be borne by rates and by grants made under Part VI of the principal Act out of the General Exchequer Contribution; and

(b) if as respects any fixed grant period the Minister certifies that the amount of rate and grant borne expenditure in the penultimate year of that fixed grant period was abnormally increased by reason of any emergency involving the issue of a proclamation under the Emergency Powers Act, 1920, there shall be deemed to be substituted for the reference to the penultimate year of the preceding fixed grant period a reference to the last year preceding the said penultimate year in which no such abnormal expenditure was incurred.

10 & 11
Geo. 5. c. 55.

24 & 25
Geo. 5. c. 29.

(3) Section forty-five of the Unemployment Assistance Act, 1934 (which provides for contributions being made by local authorities to the Unemployment Assistance Fund) shall cease to have effect.

Amendment
of rules for
determining
weighted
population.

2. The principal Act shall have effect as if for the provisions contained in Part III of the Fourth Schedule to that Act (which contains rules for determining weighted population) there were substituted the provisions set out in the First Schedule to this Act.

Provision
as to
deficiencies
in county
apportion-
ments.

3.—(1) If in the case of any county the county apportionment in any year is less than the amount required to be set aside for the councils of districts in accordance with the provisions of section eighty-nine of the principal Act, the council of the county shall, in such manner and at such times as the Minister may direct, contribute towards making good the deficiency either—

(a) a sum equal to one-half of the amount of the deficiency; or

(b) a sum equal to the product of a rate of one penny in the pound in the first year of the fixed grant period in which the deficiency occurs,

whichever is the less, and the remainder shall be paid out of moneys provided by Parliament.

Any sum so paid out of moneys provided by Parliament shall be treated as part of the county apportionment. A.D. 1937. —

(2) In this section the expression "product of a rate of one penny in the pound" means, in relation to a county, the aggregate of the products of a penny rate (calculated in accordance with rules made under section nine of the Rating and Valuation Act, 1925) in each of the rating areas in the county. 15 & 16 Geo. 5. c. 90.

4. In determining in accordance with paragraph (b) of subsection (3) of section ninety of the principal Act any reduction to be made in the standard sum required to be ascertained for the purposes of calculating the Additional Exchequer Grants payable to counties and county boroughs, the weighted population of the county or county borough shall be adjusted as follows :— Amendment as to reduction in Additional Exchequer Grants.

(a) that for the first fixed grant period shall be determined in accordance with the rules set out in the First Schedule to this Act;

(b) that for the fixed grant period in question shall be increased by a figure equal to two and a half per cent. of the weighed population for the first fixed grant period determined as aforesaid.

5. Paragraph (b) of subsection (1) of section ninety-two of the principal Act (which determines the sums payable to district councils by county councils during the first and second fixed grant periods in respect of losses on account of special or parish rates) shall have effect as if for the words "first and second fixed grant periods a sum equal to" there were therein substituted the words "third fixed grant period a sum not less than". Compensation for losses on account of special and parish rates during third fixed grant period.

6.—(1) If, in accordance with regulations made under this section, the council of any district satisfies the Minister that the reduction provided by paragraph (b) of subsection (1) of section ninety-four of the principal Act in the amounts to be added under that paragraph to the sum which apart from that section would be payable as the General Exchequer Grant of that council in respect of any separately rated area in the district (that is to say, a reduction equal to one-fifteenth of the amount so added for the year beginning on the appointed day), Power to modify provisions as to supplementary Exchequer grants to districts.

A.D. 1937. — would occasion special hardship or difficulty, the Minister may with the consent of the Treasury by order direct that during the fixed grant period in respect of which the order is made the said paragraph shall, in its application to that area, have effect as if for the words "one-fifteenth" there were substituted the words "one-thirtieth".

(2) If, in accordance with regulations made under this section, the council of any district satisfies the Minister that, notwithstanding the operation of any order made under the last foregoing subsection with respect to that district, the reduction of the amounts to be added as aforesaid under the said paragraph (b) would occasion special hardship or difficulty, the Minister may, after consultation with the county council, direct that during the remaining years of the fixed grant period in which the direction is given, further sums equal to such reductions shall be set aside, under subsection (1) of section ninety-one of the principal Act, out of the county apportionment.

(3) The Minister may, after consultation with such associations of local authorities as appear to him to be concerned and with any local authority with whom consultation appears to him to be desirable, make regulations for the purposes of this section, and any such regulations shall, in particular, prescribe the circumstances in which, and the conditions subject to which, orders may be made under this section.

Further
adjustment
for
equalising
rates in the
County of
London.

7. For the purpose of equalising as between separately rated areas in the County of London variations in the poundage of rates due to the operation of Part V of the principal Act, the amount which would otherwise be contributed by each of those areas towards the amount required to be levied by rate for general county purposes, as reduced or increased in accordance with the provisions of section one hundred of the principal Act, shall be further adjusted in accordance with a scheme made by the Minister after consultation with the London County Council, the common council of the City of London and any association or committee which appears to the Minister to be representative of the metropolitan borough councils.

8.—(1) The Minister shall, in consultation with such associations of local authorities as appear to him to be concerned and with any local authority with whom consultation appears to him to be desirable, cause an investigation to be made into the working—

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—
Investigation of working of rules in Parts III and IV of Fourth Schedule to principal Act.

(a) of the rules contained in Part III of the Fourth Schedule to the principal Act; and

(b) of the rules contained in Part IV of that Schedule;

and shall cause a report of the result of any such investigation to be laid before Parliament.

(2) The said investigations may be made at such times as may be directed by the Minister so, however, that investigations into both the matters aforesaid shall have been made before the expiration of the fourth fixed grant period.

9. The proviso to paragraph (c) of subsection (2) of section nine of the Rating and Valuation Act, 1925, shall cease to have effect.

Repeal of para. (c) of ss. (2) of s. 9 of 15 & 16 Geo. 5. c. 90.

10.—(1) This Act may be cited as the Local Government (Financial Provisions) Act, 1937, and the provisions thereof, except the last foregoing section, shall be construed as one with Part VI of the principal Act, and this Act and the principal Act may be cited together as the Local Government Acts, 1929 and 1937.

Short title, construction, citation, repeals and commencement.

(2) References in this Act to any enactment or any provision of any enactment shall, unless the context otherwise requires, be construed as references to that enactment or provision as amended by any subsequent enactment including this Act.

(3) The enactments mentioned in the Second Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

(4) This Act shall come into operation on the first day of April, nineteen hundred and thirty-seven.

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SCHEDULES.

Sections 2, 4.

FIRST SCHEDULE.

RULES FOR DETERMINING WEIGHTED POPULATION.

1. The estimated population of the county or county borough in the appropriate year shall be increased—

- (i) if the estimated number of children under five years of age per thousand of the estimated population exceeds fifty, by the percentage represented by the proportion which that excess bears to fifty;
- (ii) if, according to the valuation lists in force on the appropriate date, the rateable value per head of the estimated population of the county or county borough is less than ten pounds, by the percentage represented by the proportion which the deficiency bears to ten pounds.

2. There shall be estimated and certified the average numbers during the three calendar years immediately preceding the beginning of each fixed grant period of unemployed insured men and of unemployed insured women resident in each county and county borough, and there shall be ascertained the percentage (hereafter in this Rule referred to as the "unemployment percentage") represented by the proportion which the number of unemployed insured men increased by ten per cent. of the number of unemployed insured women bears to the estimated population of the county or county borough for the calendar year in which the appropriate year begins and if as respects any county or county borough the unemployment percentage exceeds one-and-a-half, the estimated population of the county or county borough in the appropriate year as increased in accordance with Rule 1 contained in this Part of this Schedule shall be further increased as follows :—

- (i) If the unemployment percentage exceeds one-and-a-half but does not exceed five, by a percentage equal to the amount of the excess over one-and-a-half multiplied by ten; and

- (ii) If the unemployment percentage exceeds five, by a percentage equal to the sum of the two following amounts, that is to say, the excess of the unemployment percentage over one-and-a-half multiplied by ten, and the excess of the unemployment percentage over five multiplied by five.

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1st Sch.
—cont.

3. There shall be ascertained and certified the number of miles of road in every county other than the county of London, and the estimated population of every such county as increased in accordance with Rules 1 and 2 contained in this Part of this Schedule shall be further increased—

- (a) in the case of a county in which the estimated population per mile of roads is in the appropriate year less than one hundred, by the percentage represented by the proportion which the difference between three hundred and the estimated population per mile of roads bears to three hundred; and
- (b) in the case of a county in which the estimated population per mile of roads is in the appropriate year one hundred or more, by the percentage represented by the proportion which forty bears to the difference between the estimated population per mile of roads and forty.

4. The estimated population of the county or county borough as increased in accordance with the provisions of the foregoing rules contained in this Part of this Schedule shall be the weighted population of the county or county borough.

5. For the purposes of this Part of this Schedule the "appropriate date" shall as respects the first fixed grant period, be the first day of October, nineteen hundred and twenty-nine, and as respects every other fixed grant period, the first, or in London the sixth, day of April in the last year of the preceding fixed grant period.

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SECOND SCHEDULE.

Section 10.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
15 & 16 Geo. 5. c. 90.	The Rating and Valuation Act, 1925.	In paragraph (b) of subsection (2) of section nine the words “(subject in the case of an “urban rating area to such “adjustment as is hereinafter “provided)””; the proviso to paragraph (c) of that subsection; and in paragraph (d) of that subsection the words “if “provision were not made by “the said Part II of the Second “Schedule for any such relief as “aforesaid which operates only “in an urban rating area”.
19 & 20 Geo. 5. c. 17.	The Local Government Act, 1929.	Subsection (3) of section eighty-six; the proviso to section eighty-nine; in section ninety in paragraph (b) of subsection (3) thereof the words “adjusted as regards unemployment” and subsection (4) thereof; in subsection (1) of section ninety-four the words “during the period of “nineteen years beginning on “the appointed day”, the words “during that period” and, in paragraph (b) of the said subsection, the word “fourteen”.
24 & 25 Geo. 5. c. 29.	The Unemployment Assistance Act, 1934.	Section forty-five.

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